

PRESIDENT

Article 52 -> office must exist

Article 53 -> Union executive power formally vested in President

Articles 74-75 -> binding ministerial advice + Lok Sabha responsibility

VICE-PRESIDENT

Article 63 -> office must exist

Article 64 -> ex-officio Rajya Sabha Chairman, not a member

Article 65 -> temporary acting/discharge role, not automatic succession

ANSWER LINE

President = constitutional sentinel, not rival executive.

Vice-President = parliamentary presiding officer plus continuity bridge.

ARTICLE 54 ? PRESIDENT

- elected Lok Sabha + elected Rajya Sabha
- elected State + Delhi + Puducherry MLAs
- excludes nominated members, MLCs and J&K UT MLAs

ARTICLE 66 ? VICE-PRESIDENT

- all elected + nominated MPs of both Houses
- no State or UT legislator

TRAP

Nominated MPs: President election NO; VP election YES; impeachment YES.

ARTICLE 55

MLA value = 1971 population / elected MLAs / 1000, with rounding

MP value = total MLA vote value / elected MPs of both Houses

same value for every elected MP

PR-STV + secret ranked ballot + majority quota

ARTICLE 71

Supreme Court finally decides both election disputes

electoral-college vacancy does not invalidate election

prior official acts survive later invalidation

ARTICLE 58 -> President: citizen, 35, Lok Sabha qualification, no office of profit

ARTICLE 66 -> VP: citizen, 35, Rajya Sabha qualification, no office of profit

ARTICLE 60 -> President oath by CJI / senior-most available SC judge

ARTICLE 69 -> VP oath by President / appointee

ARTICLES 56-57 -> five years, holdover, unlimited re-election

ARTICLE 62 -> presidential casual vacancy election within six months; fresh term

ARTICLE 68 -> VP casual vacancy election as soon as possible; fresh term

ARTICLE 61 ? PRESIDENTIAL IMPEACHMENT

- either House; 1/4 signatures; 14 days

- 2/3 total membership in both decisive Houses

- President may appear or be represented

ARTICLE 67(b) ? VP REMOVAL

- Rajya Sabha initiates; majority of all then members

- Lok Sabha agrees; 14 days; no stated ground

ARTICLE 361

- procedural personal immunity during tenure

- government action remains judicially reviewable

42ND AMENDMENT (1976)

amended Article 74(1) -> binding advice made explicit

44TH AMENDMENT (1978)

inserted Article 74(1) proviso -> reconsideration once; reiterated advice binds

SHAMSHER SINGH (1974)

constitutional head acts through responsible government

HUNG HOUSE

appoint person likely to command Lok Sabha confidence -> prompt floor test

ANSWER LINE

Warn, seek information and reconsider once; never create a personal programme.

ASCII MASTER FLOW ? PANEL 7/12: Power Clusters

EXECUTIVE -> Articles 77-78: formal action, business rules, information

LEGISLATIVE -> Articles 79, 85-87, 108, 111: Parliament, sessions, addresses, assent

FINANCIAL -> recommendation, Budget, grants, Finance Commission, Contingency Fund

JUDICIAL -> Article 72 clemency; Article 143 advisory reference

EXTERNAL -> formal diplomatic and Supreme Commander roles

EMERGENCY -> Articles 352, 356, 360 with distinct safeguards

RULE

Name the formal power, advice route, approving institution and review limit.

ARTICLE 111 ORDINARY BILL

assent / withhold / return once -> re-passage compels assent

MONEY BILL

assent / withhold -> cannot return

ARTICLE 368 AMENDMENT BILL

24th Amendment (1971) -> assent obligatory

ARTICLE 201 RESERVED STATE BILL

assent / withhold / return non-Money Bill through Governor

State re-passage does not textually compel presidential assent

POCKET VETO

arises from no fixed Article 111 deadline

ARTICLE 123 TRIGGER

both Houses not simultaneously in session + immediate necessity

FORCE

Act-like within Parliament competence; may be retrospective

LIMIT

cannot amend Constitution or abridge Fundamental Rights

EXIT

lay before both Houses; six weeks after later reassembly

CASES

R.C. Cooper (1970) -> satisfaction reviewable

D.C. Wadhwa (1986) -> routine re-promulgation is fraud

Krishna Kumar Singh (2017) -> laying mandatory; no ordinance rule

ARTICLE 72 FORMS

pardon / reprieve / respite / remission / commutation

PRESIDENT'S FIELD

court-martial + Union field + every death sentence

ARTICLE 161 GOVERNOR

State field; no court-martial; cannot pardon death but may commute

CASES

Maru Ram (1980) -> binding advice

Kehar Singh (1988) -> merits may be examined afresh

Epuru Sudhakar (2006) -> limited review for bad faith/arbitrariness

ARTICLE 64 -> VP is ex-officio Chairman, not RS member

ARTICLE 100 -> no first vote; casting vote on equality

ARTICLE 92 -> during own removal: may speak, cannot preside or vote

TENTH SCHEDULE + KIHOTO HOLLOHAN (1992)

defection decisions subject to judicial review

ARTICLE 65

acting as President -> no simultaneous Chair duties

DEPUTY CHAIRMAN

performs Chair duties during acting period

PRESIDENT

federal weighted election | Lok Sabha qualification

Article 61 impeachment | six-month casual-vacancy deadline

VICE-PRESIDENT

Parliament-only equal vote | Rajya Sabha qualification

Article 67(b) removal | vacancy filled as soon as possible

CURRENT, CHECKED 5 SEP 2026

Droupadi Murmu -> President since 25 Jul 2022

C. P. Radhakrishnan -> elected 9 Sep 2025; office from 12 Sep 2025

FINAL SPINE

Article -> mechanism -> amendment/case -> purpose -> limit -> verdict